

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

Ricardo Gordon

CW 17-970

CIVIL RIGHTS COMPLAINT
42 U.S.C. § 1983

Plaintiff,

[Insert full name of plaintiff/prisoner]

JURY DEMAND

YES ☒

NO ☐

-against-

New York City

John doe 1 officer § 87(2)(b) present

John doe 2 officer § 87(2)(b) present

ADA John doe

Defendant(s).

[Insert full name(s) of defendant(s). If you need additional space, please write "see attached" and insert a separate page with the full names of the additional defendants. The names listed above must be identical to those listed in Part I]

FILED
IN CLERK'S OFFICE
U S DISTRICT COURT E.D.N.Y.
★ FEB 16 2017 ★

BROOKLYN OFFICE
DONNELLY, J.

MANN. M.J.

- I. **Parties:** (In item A. below, place your name in the first blank and provide your present address and telephone number. Do the same for additional plaintiffs, if any.)

A. **Name of plaintiff**

Ricardo G Gordon

If you are incarcerated, provide the name of the facility and address:

Rikers Island OBCC 1600 Hazen Street

East Elmhurst NY 11370

Prisoner ID Number:

141-15-11489

If you are not incarcerated, provide your current address:

Latoria Gilliam 1174 Nostrand Ave
Brooklyn NY 11225 Apt 2R

Telephone Number: 718-953-1118

B. List all defendants. You must provide the full names of each defendant and the addresses at which each defendant may be served. The defendants listed here must match the defendants named in the caption on page 1.

Defendant No. 1

City of New York
Full Name

Job Title

Address

Defendant No. 2

John Doe 1 officer
Full Name

of the 83rd pct
Job Title

Address

Defendant No. 3

John Doe 2 officer
Full Name

of the 64th pct
Job Title

Defendant No. 4

ADA of Kings County

Facts: (what happened?)

See (attachment)

II.A. Injuries. If you are claiming injuries as a result of the events you are complaining about, describe your injuries and state what medical treatment you required. Was medical treatment received?

Pain, severe suffering, illegal detention, negligence that caused severe emotional/mental anguish, loss of earnings, Shame, humiliation of Strip Search's, Carity George's, injury to reputation, physical pain and suffering, punitive damages, falsely incarcerated and prosecuted causing pain and suffering

III. **Relief:** State what relief you are seeking if you prevail on your complaint.

Plaintiff is requesting relief of monetary compensation in the amount of five million dollars (\$5,000,000), and basis for such amount is for the pain and suffering of being wrongfully incarcerated, negligence that caused severe emotional mental anguish, loss of earnings, shame, humiliation, due to strip search, cavity searches, illegal detention and malicious prosecution.

I declare under penalty of perjury that on _____, I delivered this complaint to prison authorities at O.B.C.C. Rikers Island ^(date) to be mailed to the United States District Court for the Eastern District of New York. _(name of prison)

I declare under penalty of perjury that the foregoing is true and correct.

Dated: 2-10-2017

Racaron Jorston
Signature of Plaintiff

Rikers Island O.B.C.C.
Name of Prison Facility or Address if not incarcerated

1660 Hazen Street
East Elmhurst NY 11370

Address

141-15-11489 NYID# 04883833Q
Prisoner ID#

Ricardo G. Gordon
B+C# 141-15-11489
NYID# 04883833Q
16-00 Hazen Street
East Elmhurst NY 11370
Rikers Island

- 1) Plaintiff Ricardo Gordon brings fourth this § 1983 claim against the City of New York, the officers involved directly in the arrest, and the prosecution for malicious prosecution.
- 2) On or about the date of October, 2014 the plaintiff was walking on the street of brooklyn innocently, not involved in any Criminal activity when he was suddenly harassed by officers from approximate the 84 precinct.
- 3) Plaintiff was arrested and detained absent any probable cause.
- 4) Officers stated that they was looking for a perp that was reported to be involved in Criminal activity, but committed false imprisonment and violated plaintiff's due process.
- 5) Arresting officer's failed to take any steps to identify arrestee as the wanted fugitive in the so called incident.

- a) The officers was deliberate indifference toward arrestee's due process rights, where the arresting officer did not check Identification, physical description, height, weight, hair color, male or female, anything to corroborate the so called information to the complaint.
- b) Officers grabbed me and threw me on the floor where they hand-cuffed me tightly hurting my wrist, and tossing me around in an attempt to acquire information I didn't have.
- c) The officer's committed an improper act after they arrested the plaintiff by using unreasonable force to illegally seize.
- d) Plaintiff's false imprisonment by NYC officers amounts to "actual deprivation of Constitutional rights or other rights guaranteed by law see (Dowsey v Wilkins (1972, CA5 Ala.) 467 F.2d 1022.)
- e) The officer had no good faith and any reasonable belief concerning legality of both detention and verification procedure used to identify plaintiff.
- f) Officers acted with deliberate and reckless intent to falsely imprison plaintiff because they attempted to solve a report absent any proof, or description of perp yet falsely arrested plaintiff.

- 12) Plaintiff was arrested on or about the date of October, 02, 2014 till August, 12, 2015, for the charges of Burglary 2nd Degree; PL 140.25 (2) Burglary 3rd Degree; PL 140.20 Petit Larceny cPL 155.25 Criminal Possession of Stolen Property - 5th Degree cPL 165.40 - Criminal Trespass 2nd - CPL 140.15.
- 13) Plaintiff was Acquitted by jury on August 12, 2015 and had Complete Dismissal on August 14, 2015.
- 14) There was no probable cause for arrest and a Warrantless Arrest had occurred because of the negligent Reckless actions of the officers.
- 15) Negligence in furnishing information leading to the arrest was actionable on negligence principles and actual damages were required see Braman V. U-Haul, inc., 945 S.W.2d 676.
- 16) A clear showing of wantonness is within the records of the proceedings against the plaintiff.
- 17) There was also malicious prosecution based on a judicial proceeding begun by the issuance of a process, but commenced and prosecuted maliciously and without probable cause when so called witness failed to point out plaintiff see Martinez v.

City of Schenectady 97 NY2d 78) and
(Smith-Hunter v. Harvey 95 NY2d 191)

8) The State of New York and or the City of New York may be liable for the false imprisonment if it fails to prove any legal justification for a claimant's arrest see (Dabbs v State 88 A.D.2d 1093 3d Dept).

19) The continual imprisonment of the plaintiff after there has been ample opportunity to determine the invalidity of the legal process involved (Harty v State 29 AD2d 243).

20) The measure of damages for false imprisonment is that amount which will justly and reasonably compensate the plaintiff for the loss resulting from the injuries caused by the defendant's wrongful acts see (Kehli v. City of Utica, 105 AD2d 1085) and see
(Scholl v City of Utica 163 AD2d 909).

21) The elements of damages include mental anguish, shame and humiliation, injury to reputation, physical suffering, loss of earnings, injury to or loss of property and legal expenses in defending the prior actions, where the damages were proximately caused by the defendants illegal acts see (Nastasi v State 300 NY 473).

22) While the motives of the person

imprisoning the plaintiff are not material to the cause of action, the existence of malice is relevant to the award of punitive damages see (Gill v Montgomery Ward & CO. 284 AD 36, 129 NYS2d 288).

23) Plaintiff is requesting relief of monetary compensation in the amount of five million dollars (\$5,000,000), and basis for such amount is for the pain and suffering of being wrongfully incarcerated negligence that cause severe emotional mental anguish, loss of earnings, shame, humiliation due to strip searches, cavity searches, illegal detention and malicious prosecution, lack of any probable cause for arrest.

24) All issues are subject to be amended when discoveries recovered strengthen arguments laid down in plaintiffs case.

25) Plaintiff's case number of above complaint is 06923-2014 violating plaintiff's 4th, and 14th amendment, due process and any other amendments involved.

EXHIBIT

A

-- Criminal Trespass 2nd - Enter Or Remain Unlawfully In A Dwelling
PL 140.15 Sub 01 Class A Misdemeanor NCIC 5707

-- Criminal Trespass 3rd: Public Housing-In Violation of Posted Rules
PL 140.10 Sub 0E Class B Misdemeanor NCIC 5707

-- Trespass
PL 140.05 Violation NCIC 5707

August 18, 2015

Sealed Upon Termination Of Criminal Action In Favor Of The Accused CPL160.50

--Court: Kings County Supreme Court Case Number: 06923-2014

October 02, 2014

Initial Report Of Indictment Number

October 21, 2014

Arraigned

-- Burglary 2nd Degree: Illegal Entry- Dwelling
PL 140.25 Sub 02 Class C Felony NCIC 2299

-- Burglary-3rd Degree: Illegal Entry with Intent to Commit a Crime
PL 140.20 Class D Felony NCIC 2299

-- Petit Larceny
PL 155.25 Class A Misdemeanor NCIC 2399

-- Criminal Possession Stolen Property-5th Degree
PL 165.40 Class A Misdemeanor NCIC 2804

-- Criminal Trespass 2nd - Enter Or Remain Unlawfully In A Dwelling
PL 140.15 Sub 01 Class A Misdemeanor NCIC 5707

August 12, 2015

Acquitted By Jury

-- Burglary 2nd Degree: Illegal Entry- Dwelling
PL 140.25 Sub 02 Class C Felony NCIC 2299

-- Criminal Possession Stolen Property-5th Degree
PL 165.40 Class A Misdemeanor NCIC 2804

August 12, 2015

Dismissed

-- Burglary-3rd Degree: Illegal Entry with Intent to Commit a Crime
PL 140.20 Class D Felony NCIC 2299

START
here

This
one

-- Petit Larceny
PL 155.25

Class A Misdemeanor NCIC 2399

-- Criminal Trespass 2nd - Enter Or Remain Unlawfully In A Dwelling
PL 140.15 Sub 01 Class A Misdemeanor NCIC 5707

STOP
Right
here

August 14, 2015

Sealed Upon Termination Of Criminal Action In Favor Of The Accused CPL160.50

↓ Cycle 20 ↑

Arrest/Charge Information

Arrest Date: April 08, 2008 03:20 pm (15:20:00)

Name: RICARDO G GORDON
Date of Birth: October 20, 1964
Sex: Male
Race: Black
Age at time of crime/arrest: 42
Address: NY
Fax Number: K26080
Place of Arrest: NYCPD 84
Arrest Type: Unknown
Date of Crime: May 31, 2007
Place of Crime: NYCPD 61
Criminal Justice Tracking No.: 59919077P
Arresting Agency: NYCPD PCT 084
Arresting Officer ID: 929551
Arrest Number: K08632516
Arrest Charges:

-- Burglary-3rd Degree: Illegal Entry with Intent to Commit a Crime
PL 140.20 Class D Felony Degree 3 NCIC 2299

Court Case Information

--Court: Kings County Supreme Court Case Number: 02350-2008

April 22, 2008

Initial Report Of Indictment Number

April 22, 2008

Arraigned

-- Burglary-2nd Degree
PL 140.25

Class C Felony NCIC 2299

-- Burglary-3rd Degree: Illegal Entry with Intent to Commit a Crime
PL 140.20 Class D Felony NCIC 2299

ORIGINAL

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

Ricardo Gordon, #1411511489, Rikers Island OBCC 1600 Hazen Street,
East Elmhurst, NY 11370

(b) County of Residence of First Listed Plaintiff _____
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)
Pro Se: See Above

DEFENDANTS

New York City; John Doe 1 Officer 83 Precinct; John Doe 2 Officer 83
Precinct; ADA John Doe

County of Residence of First Listed Defendant _____
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF
THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☒ 3 Federal Question (U.S. Government Not a Party)
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|----------------------------|----------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault & Battery ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☒ 540 Mandamus & Other ☒ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement		

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District (specify) ☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

Brief description of cause:
Civil Action Pursuant To 42 USC 1983

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☐ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

RANDOM/RANDOM

DOCKET NUMBER

NONE

DATE

SIGNATURE OF ATTORNEY OF RECORD

02/16/2017

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

970

JUDGE

RMD

MAG. JUDGE

RLM

CERTIFICATION OF ARBITRATION ELIGIBILITY

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, _____, counsel for _____, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☐ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☐ the matter is otherwise ineligible for the following reason

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? NO
- 2.) If you answered "no" above:
 - a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? NO
 - b) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? YES

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.
☐ Yes ☐ No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?
☐ Yes (If yes, please explain) ☐ No

I certify the accuracy of all information provided above.

Signature: _____